



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 21 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11336

EXPIRATION DATE: November 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Noranda Minerals, Incorporated
Rouyn-Noranda, Quebec, Canada
U.S. Agent: Noranda Sales, Incorporated
Cleveland, Ohio
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of a DOT Specification 111A100W3 tank car, containing a residual amount of a Class 8 material, meeting all DOT requirements except that the tank car has defective bottom outlet valve. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(a) and 173.31(a).
5. BASIS. This emergency exemption is based on Noranda Minerals, Incorporated's application of October 19, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Sulfuric acid	8	UN 1830	II

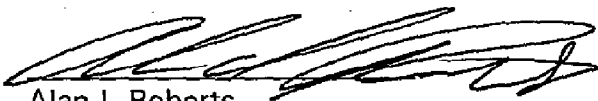
7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT specification 111A100W3 tank car, CGMX 56439, with a defective bottom outlet flange. The defective area has been secured through the use of a patch to prevent the release of product.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 21 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA